

SPECIAL ISSUE



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GAZETTE NOTICE No. 259

AMENDMENTS

TO THE TERMS OF REFERENCE OF THE

PANEL OF EXPERTS ON COMPENSATION OF VICTIMS OF DEMONSTRATIONS AND PUBLIC PROTESTS

WHEREAS, By dint of a Presidential Proclamation issued on 6th August, 2025, the Head of State and Government, acting in furtherance of the State's constitutional mandate to promote national healing and social cohesion, established a framework for the reparation and compensation of victims of demonstrations, public protests, and riots;

WHEREAS, To facilitate the implementation of this novel framework, the President appointed a Panel of Experts, as notified *vide Kenya Gazette* Notice No. 12002 of 2025;

WHEREAS, The High Court of Kenya at Kerugoya, by its Judgment delivered on the 4th day of December, 2025, in Constitutional Petitions Nos. E10, E11 and E14 of 2025 (Consolidated), affirmed the unique constitutional mandate of the President in the protection of human rights and in facilitating the pursuit of reparations as contemplated under the Proclamation;

WHEREAS, The said Judgment further issued orders directing the revision of the Terms of Reference of the Selection Panel, in recognition of the constitutional and statutory mandate of the Kenya National Commission on Human Rights;

WHEREAS, It is necessary to give effect to the said Judgment so as to ensure that measures for the reparation and compensation of victims of demonstrations, public protests, and riots are implemented in a manner consistent with the Constitution and other laws;

NOW THEREFORE, in compliance with the said Judgment of the High Court of Kenya, IT IS HEREBY NOTIFIED, for the general information of the public, that Gazette Notice No. 12002 of 25th August, 2025 is amended as follows—

I. Paragraph II (a) of Gazette Notice is *deleted* and *substituted* with the following—

(a) to advise the President on the lawful and constitutional implementation of the reparations framework for victims of public protests and riots, based upon a report prepared by the Kenya National Commission on Human Rights.

II. Paragraph II of Gazette Notice No. 12002 is further amended by inserting the following new sub-paragraph immediately after sub-paragraph (f)—

“(g) to perform its functions in strict compliance with the Constitution and all applicable laws and procedures, in collaboration with relevant public bodies and institutions where necessary.

III. The term of the Panel is hereby extended for a further period of one hundred and eighty (180) days from the date of publication of this notice, or for such other period as may be specified in the *Kenya Gazette*.

Dated the 2nd January, 2026.

FELIX K. KOSKEI,
Chief of Staff and Head of the Public Service.